

1/28/26, but this is untimely – Replies must be filed at least 5 court days in advance of the hearing – and the court will not consider it.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, insufficient evidence was provided to the court to show the existence of any agreement, let alone one that contained an arbitration provision. No exhibits contained any signed agreements between the parties, and neither did the Complaint.

Disposition

Defendant's Motion is **denied**.

Defendant to file the Order.

14. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

***HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and for entry of judgment per stipulated agreement.

The Motion is unopposed.

Proof of service for this Motion, however, suggests mail service on Defendant at an address that is not apparent in any prior pleadings or attachments. The only address for Defendant in the Court File is that at which personal service occurred for service of process, and it was a different address than the one indicated for this Motion. No

agreements are attached listing a mailing address for the Defendant.

Disposition

This Motion will be **continued** to 4/14/26, 9 a.m., for Plaintiff to notify Defendant.

15. 9:00 AM CASE NUMBER: N25-2474

CASE NAME: BETTY VETRO VS. TAMPICO HEALTHCARE CENTER, LLC

HEARING IN RE: PETITIONERS' OSC FR TAMPICO HEALTHCARECENTER, LLC'S FAILURE TO MAKE
MED RECS AVAIL & REQ FOR MONETARY SANCT IN AMT OF \$4,550.00 AGAINST TAMPICO
HEALTHCARE, LLC

FILED BY: VETRO, BETTY

TENTATIVE RULING:

Background

Petitioner has filed an OSC and request for sanctions for Respondent's failure to provide medical records, under Section 1158 of the Evidence Code.

The OSC is unopposed.

However, there is no proof that Petitioner has served the Respondent with the Petition. Moreover, Petitioner's "Reply" and Memo supporting the Reply were filed and served on 1/27/26. These documents are untimely.

Disposition

The Petition is **continued** to April 14, 2026, at 9 a.m., for Petitioner to serve Respondent with the Petition.

Petitioner is to file the order on the continuance.